

In The United States District Court For The Northern District of Mississippi

Matthew Oliver Reardon

Plaintiff

VS

Case - 3:22-CV-00050-SA-JMV

State of Mississippi ET AL

Defendants

Plaintiff's Sworn Declaration and Request
For Emergency Injunctive Relief with Stipulated
Order for protection

I, Matthew Oliver Reardon, do hereby Declare and Swear, under the Pains and Penalties of Perjury offer the following facts and information to supplement All that has been Filed in this Matter with new related occurrences:

- 1) On or around the 1st week of June, 2022, this honorable Court ordered that service of this Lawsuit be made to parties of this Lawsuit by the US Marshalls Office
- 2) It is alleged that through intimidation, retaliation, and interference into this matter at hand that a massive First Amendment Violation was knowingly committed by multiple named Defendants in this matter further leading to additional Constitutional Rights Violations
- 3) On June 24th 2022, I commuted to Oxford, MS City Hall to conduct a 1st Amendment Audit and request Public Records from the City Clerk.
- 4) The entire matter was video documented from start to finish as typical of a Citizen Journalist when conducting a 1st Amendment Audit.
- 5) After Video Recording the Historical Artifacts on the 1st Floor, I ascended to the second level. This level housed the City Board Room and several offices, including Mayor Robyn Tannehill's Office

- 6) Approximately 3-5 Minutes later, I am approached by Oxford Police Department Lieutenant Kevin Parker and escorted out of the building under Detainment. Officer Parker advises that I am not allowed to be inside of City Hall due to a 5-Year old Restraining Order taken out in 2017 by Mayor Tannehill which was still Active.
- 7) I have long Maintained that this Restraining Order was taken out under False Pretences by the then Mayor-Elect Robyn Tannehill and husband Rhea in an Outrageous Attempt to Oppress, Silence, and Restrain me as an Outspoken Political Opponent of Tannehill's Policies and a Constitutional Rights Activist.
- 8) The Restraining Order was taken out on or around May 22nd 2017 and served the Purpose of effectively blocking a pre-scheduled, Planned speaking engagement at a Oxford, MS City Hall Board Meeting on June 6, 2017 where I was going to Address the Mayor and Board of Aldermen Members about Specific grievances and Policy. This date, June 6, 2017, Just so happened to be the same day Tannehill would be elected as Oxford's 36th Mayor.
- 9) A permanent order was agreed to in June 2017 based solely upon inducement and False Promises from Attorney Brennan Horan that Agreement to such order would make a pending charge of Aggravated stalking go away and grant my Freedom. This did not happen. Mr Horan was only retained to represent me in the criminal Cause in Circuit Court which was not related to any matter involving the Tannehill's, and a matter that I maintained my insistence of Innocence on based upon evidence that I Maintained and still Maintain.
- 10) At no point did I ever threaten any type of Bodily Injury on Mayor Tannehill or her Husband. The original Affidavit lists out Constitutionally protected Activity and a complete embellishment of the Truth.

- 11) I have attempted to report this information and additional Alleged Acts of Public Corruption to The Mississippi Bureau of Investigations on Four Separate and Documented Occasions, being told each time that someone would contact me back. After no returned call or correspondence as I was told would happen, I openly Accused the Mississippi Bureau of Investigations of being Complicit and Derelicting Their Duty in May of 2021, as the Re-election of Tannehill was quickly Approaching.
- 12) This Accusation drew a response by MBI Supervisor Brian Sullivan whom apologized for the lack of any response or communication. I communicated the grievance I had regarding Alleged Acts of Public Corruption among Officials in Oxford, MS and Lafayette County including a violation of My 1st Amendment Right through Election Integrity involving Mayor Tannehill, particularly with her coming up for Re-Election. Sullivan stated on the phone call that Mississippi Bureau of Investigations would be standing down and not investigating the matter, and I published the phone conversation.
- 13) On June 24, 2022 after being escorted outside of Oxford, MS City Hall by Lt. Parker, I am confronted by Captain Lyons whom reinforces that due to the restraining order being active still, and with Mayor Tannehill's office being inside of City Hall, That if I return to City Hall Again, I will be Arrested for Trespassing in violation of a restraining order. I complied with these orders and left, Opting to Challenge the Validity and Constitutionality of the restraining order in a Court of Law.

- 14) The Restraining Order DOES NOT specify City Hall as a Place I am restricted from coming to, however based upon the orders given by Lieutenant Parker and Captain Lyons it is inferred that way. As such the restraining order should be struck down as over-reaching and unconstitutional as it directly infringes on the 1st Amendment Right of a citizen and Journalist to be restricted from entering City Hall, a public Building to request Public Record and Air grievances within the City. This is based upon the following guarantees under the 1st Amendment:
- A) Freedom of speech
 - B) Freedom of the press
 - C) The Right to peacefully Assemble
 - D) The Right to petition the Government for Redress of Grievances
- 15) Approximately 2-3 Days later, Oxford Police Chief Jeff McCutchen decides to refer this incident over to the Mississippi Bureau of Investigations (MBI). The Investigation is assigned to Lieutenant Joey Mauney to investigate.
- 16) Mauney states in his report that I attempted to gain access to the Mayor's office approximately 7 minutes and 30 seconds into the video I took of the Audit. However I never once touched the door knob to the office and was simply scanning a QR code on the window glass ~~from~~ with my cell phone from a distance of approximately 2 feet.
- 17) At No Point did I ever mention Mayor Tannehill's name, Ask to see her, nor did I ever see Mayor Tannehill inside of City Hall and this is clearly evidenced via the Start to Finish Video

- 18) Mauney also references 5-6 Twitter Tweets of Mine From 2021 which criticized Mayor Tannehill's policies. Importantly, these tweets spanned a range of time in which Mayor Tannehill was running for re-election, and most certainly were constitutionally protected Free Speech centered around Politics and Journalism.
- 19) On or around June 27th 2022, Lt. Mauney recommends a charge of Aggravated Stalking be charged Against Me. In his Bill of Information he listed out the Political Tweets tweeted out in 2021 as well as the 1st Amendment Audit of City Hall on 6/24/2022 as the "Course of Conduct" that was supposedly "Directed at Mayor Robyn Tannehill"
- 20) Between June 27th June 28th 2022, An Arrest Warrant is Applied For. This Warrant is Approved and signed by Circuit Court Judge Kent Smith and is then tendered over to Lafayette County Sheriff's Department to make a Felony Arrest for the charge of Aggravated Stalking.
- 21) On the morning of June 28th 2022 prior to walking into Lafayette County Chancery Court Courtroom for a scheduled Hearing on a child Custody Matter, I am wanded and searched for recording devices by Major Alan Wilburn of the Lafayette County Sheriff's Department. He then pulls out the Arrest Warrant and takes me into custody for the alleged charge of Aggravated Stalking.
- 22) Upon arrival at the Lafayette County Detention Center I am placed on a video call with Judge Kent Smith for a Bond Hearing. Judge Smith issued a \$10,000 Bond and simultaneously Appoints Mitchell Driskell as my Public Defender.
- 23) In the day or days following my arrest and bond hearing, Assistant District Attorney Tiffany Kilpatrick files a motion to Revoke Bond and hold me without Bail pending a hearing. This request is granted and both a Preliminary Hearing and a Bond Revocation Hearing are set for on or around Wednesday of the following week (First week of July 2022)

- 24) The Combined Hearing utilized the Appearance of Mob Domination through a Vast array of Individuals called to testify along with a Vast array of Individuals Spectating in the Gallery.
- 25) Lafayette County Sheriff Joey East gave testimony that I was a "Perceived threat" in a bold move to Oppose releasing me on bond, Sheriff East is a Defendant in this Cause.
- 26) The Sheriff of Calhoun County, Greg Pollan, was also called to testify Against me. However, I had never met nor had I ever had any contact with Sheriff Pollan or any of his Deputies and as a result his testimony in the matter at hand should have been deemed irrelevant and not allowed.
- 27) Testimony also contained completely outlandish and outrageous Claims by Mayor Robyn Tannehill and husband Rhea which should have been objected to by Counsel and never allowed by the Court. This would include Mr Tannehill stating on one occasion they noticed outdoor chairs that were knocked over at their house and had assumed it was me that had done it. I have absolutely no idea where the Tannehills reside and would NEVER do such a thing!
- 28) Additionally, testimony included a statement by Mayor Robyn Tannehill that I was a "Monster". I had never before seen Mayor Tannehill outside of an Oxford Board of Aldermen meeting on May 16, 2017 and a hearing associated with the restraining order she took out against me. None the less, Counsel remained quiet, not objecting to the erroneous and slandering testimony. He refrained from cross-examining these listed individuals based primarily on their level of influence.
- 29) At the Conclusion of this lengthy Dual Hearing, Judge Smith Revokes/Denies the bond he initially Assigned and orders that a Mental Health and Competency Exam be Conducted.
- 30) On information and belief, Court Appointed Attorney Mitchell Driskell steps down as my appointed attorney the Following week, although nothing is ever Filed by Driskell or the Court officially Relieving him of his Appointed duty.

- 31) Approximately three weeks later, I meet with Attorney Mark McClinton whom informs me that he has taken over for Attorney Mitchell Driskell on my case. He confirms that in no way did my aforementioned Twitter Tweets or First Amendment Audit of Oxford City Hall mentioned in the Bill of Information ever warrant any such charge of "Aggravated Stalking".
- 32) I informed Mr. McClinton about the Active Federal Lawsuit Filed in this court that named the Lafayette County Sheriff Joey East, The Lafayette County Circuit Court Clerk Jeff Busby, Lafayette County Board Attorney David O'Donnell, Lafayette County, Mississippi, and The State of Mississippi among others as Defendants. I told McClinton that I felt this charge served the purpose of Intimidation and Retaliation for the Lawsuit which was served on all parties via the US Marshalls in June, just weeks prior to this charge.
- 33) I stated to Mr. McClinton my desire to have this matter removed to US District Court if at all possible for the reasons listed. I advised him that if this was not possible, that I wanted to most certainly exercise my right to a speedy trial and that a change of venue to another county would be needed to avoid impropriety and improper influence. I also clearly stated the need for the court ordered mental health exam to be scheduled and completed so that I could get my bond re-instated.
- 34) During the month of August 2022, my wife informs me that she was terminated from her job at Red Med due to the special needs of our youngest child and her need to take off work to attend to those needs due to me being in jail. The special needs/birth defects in the youngest child is a primary basis of this federal lawsuit being filed.
- 35) 2-months elapse from the time the mental health exam is ordered until the day the exam is scheduled. It is finally scheduled for on or around the first week of September, 2022 with Dr. Christopher Lott via video conference from the jail on a Saturday morning.

- 36) After concluding the examination which spanned the course of two to three hours, Dr Lott states that he has observed no signs of any mental illnesses and that I am fully competent to stand trial. The report and findings are finalized and transmitted to Attorney McClinton, Assistant District Attorney Tiffany Kilpatrick, and Judge Smith approximately two weeks later and a Competency Hearing is scheduled for September 30th 2022 at Lafayette County Circuit Court.
- 37) On September 29th 2022, the day before the Competency hearing, I speak to Attorney Mark McClinton on the phone. He tells me the case which never had any merit to begin with had fallen apart for the state and that they would be dismissing the charge outright the following morning after the competency hearing and that I would be done with everything and going home. I then relayed this information home to my wife and children, whom stated their absolute need to have me home to tend to parental and financial responsibilities, particularly with my wife becoming unemployed a month prior from parental responsibilities while I was incarcerated.
- 38) The following morning of September 30th 2022, I am taken to Lafayette County Circuit Court for the competency hearing. Once there Attorney McClinton takes me to a back room, and presents me with a guilty plea. He says that if I don't agree to plea out that a trial will ultimately be fixed by a tainted jury pool even if it got moved to a neighboring county. He claims it is rigged for me to lose, and if I wanted my freedom to get back to my family, I would need to plea out and agree to a set of stipulations. Of these included 5-years probation, and a banishment from Lafayette County allowing me 45 days to relocate. McClinton advises he would expunge my charge as soon as it is eligible. Aggrieved and feeling trapped unfairly, I take the coerced plea, however little did I know at the time, my nightmare would just begin.
- 39) After the guided plea and in the days and weeks to follow, I advised McClinton that I wanted to withdraw the plea and take the matter to trial. McClinton refuses to entertain my requests.
- 40) On or around October 27th 2022 I conduct a 1st Amendment audit on the Holly Springs, MS City Hall. This audit draws the presence of the majority of on-duty police officers with Holly Springs Police Department to Holly Springs City Hall to make contact with me. While there, I capture an act of aggression as well as an act of concealment and cover-up by two police officers on video.

- 41) The Following day I attempt to Report this Serious discovery to the Holly Springs Police Chief, Chief Glover. Glover makes it clear to me on the phone that he is Not interested in taking this complaint and investigating it, to which I respond that my next step is to refer the matter and video evidence to the FBI to investigate for police Corruption.
- 42) At approximately 10AM CST on October 28, 2022 I called the local FBI Field Office in Oxford, MS to report the incident. I advise that I have video evidence I would like to submit and would like to speak with an Agent in person about it. I ask for an appointment time to come to the office so as not to waste my time, and also to inform the Sheriff's Department of my needed presence to not chance violating the conditions of my Banishment provisions. The employee on the phone tells me they don't do appointments and to come up there in the next hour and a half which I then call and convey to the Lafayette County Sheriff's Department in specific Deputy Kandis Beavers. I recorded both of these phone calls on my Cellphone for my own record.
- 43) I waited at the FBI Field Office for two to three hours time awaiting an Agent or Agents to speak with me. This never happened, and I was finally advised that no Agent was available nor would be available for the rest of the day as it was a Friday Afternoon and all Agents were either in the field or had gone home.
- 44) Aggrieved, I call Deputy Kandis Beavers back at the Sheriff's Department and state my want to commute to the US Attorneys office in Oxford, MS to redress my Grievance with what had happened at the FBI office as well as the Holly Springs, MS issue. She tells me to proceed, and I recorded that conversation as well for my record.
- 45) At the US Attorneys office I was greeted by three Assistant US Attorneys in the Lobby where I aired Grievances about everything I had experienced including retaliatory and malicious prosecution regarding the Aggravated Stalking charge placed against me for walking into Oxford, MS City Hall. The event I captured on video involving two Holly Springs Police Officers, and the fact that I was told on the phone to commute to the FBI Field office to bring evidence of Police Corruption and that nobody would meet with me when I did that. These Assistant US Attorneys were not the least bit concerned with any of it and appeared to have cared less.
- 46) I left the US Attorneys office and drove straight to Holly Springs, MS City Hall where I presented the City Clerk and the Mayor with a Notice of Claim regarding the events of the previous day. This was filed before close of Business 10/28/22.

- 47) On Monday, October 31st 2022 I rode with my wife back to Holly Springs, MS and while there I went by City Hall to request Public Records from the City Clerk. These records included a request for the City of Holly Springs Annual Budget and expenditures, as well as the Name, Job Title, and salary of each City employee.
- 48) Later on that same day, I completed work on a detailed Motion to withdraw Guilty Plea that I was going to file Pro Se in Lafayette County Circuit Court Criminal Cause LK22-358, after my court appointed Attorney refused to assist, I called Lafayette County Sheriffs Department to inform them of my necessity to file a document in Circuit Court. I was initially given some resistance by Deputy Chris "Snuffy" Smith before being permitted to proceed, This phone conversation was taped for my own records, I filed this Motion just prior to Business Closing while being intimidated by two Sheriffs Deputies and Lafayette County Circuit Clerk Jeff Busby standing by the window. I am even threatened by Busby that he will have me arrested by the two Sheriffs Deputies present which should qualify as a violation of 42 USC 1985(2) and this is captured on video via my cellphone and Body camera on the two Deputies.
- 49) On the next day, November 1st 2022, Assistant District Attorney Tiffany Kilpatrick Files a Motion to revoke the sentence given by my Plea on September 30th 2022. She asks that I be taken into custody and held without bond until a revocation hearing. This is immediately signed by Circuit Court Judge Tollinson, and the order to take me into custody is tendered over to the Lafayette County Sheriffs Department.
- 50) Later on in the evening of November 1st 2022, I commute to Holly Springs MS City Hall for a City Hall Meeting to listen in attendance and address the recent occurrences within the City. The meeting lasts approximately an hour and a half and I livestream the full meeting on my Youtube Channel, Lafayette County Audit.
- 51) On the way back home to my still current residence in Lafayette County, I am abruptly pulled over by two Lafayette County Sheriffs Deputies whom present me with the signed order by Judge Tollison authorizing them to take me into custody. I was completely shocked on two different accounts: The First being this motion to revoke my sentence filed by the ADA Tiffany Kilpatrick the day after I filed a motion to withdraw my Guilty Plea, and the second being that there was no arrest warrant and only a signed order not accompanied by the motion filed by Kilpatrick. Fortunately, the Deputies allow me to drive my vehicle to the Sheriffs Department for my wife to pick up the next morning to avoid it being towed to an impound lot.

- 52) I am held in the Lafayette County Jail from the evening of November 2nd until November 3rd when I am pulled out of my cell for the hearing. What would transpire next would be the very definition of a kangaroo court, in which the principles of law and justice are disregarded by irregular procedures so as to render a fair proceeding impossible.
- 53) Not only am I not given any type of advance notice of what my accusation/accusations to have compulsory process for witnesses or evidence in my favor, but I am also brought into court unrepresented by an attorney for a revocation hearing that was never afforded any type of Preliminary Hearing as required under State Law. This amounted to a complete deprivation of Due Process, a Violation of the Fifth and Fourteenth Amendment to the US Constitution.
- 54) At the hearing, Deputy Kandis Beavers of Lafayette County Sheriff's Department is called to testify that I knowingly violated the conditions of the Banishment Order on my sentence by commuting to the FBI office in Oxford, MS without having an appointment. She claims Sheriff East, a Defendant in this cause, called the FBI Field office directly after I called on 10/28/22 to ask if I had an appointment and was advised I did not. I never stated I had an appointment, only that I was advised to come up there to bring evidence and that is what I told Beavers. I tell the court there is evidence through recorded phone conversations, however I am not permitted to gather them for the court.
- 55) Another employee of Lafayette County Sheriff's Office testifies that she "observed me taking my children Trick-or-Treating in a neighborhood" on the outskirts of Lafayette County on 10/31/22. However when cross-examined by me, she could provide no photos, video, or audio of the such, and couldn't provide my car tag number despite allegedly seeing me at my vehicle with my children.
- 56) After a brief deliberation of approximately three minutes, Judge Tollison returns to the bench and finds that my sentence should be revoked and asks ADA Kilpatrick what sentence she recommends. Kilpatrick recommends 1-Year in Prison with the other 4-Years of Probation put back on unsupervised Probation when I am released. The Judge so orders it, once again declining me the opportunity to present exonerating evidence or obtain witnesses.
- 57) I am returned to the County Jail where I would remain until December 14th 2022 when I am transported from Lafayette County Detention Center to the Central Mississippi Correctional Facility in Pearl, MS. I was advised at Lafayette that I would only serve 25% of the sentence under the 25% Rule (3-months), however upon being classified at CMCF I am told I have to do the whole Year with credit for Jail time served in the County Jail.
- 58) This Sworn Declaration details out numerous violations of the 1st Amendment, 4th Amendment, 5th Amendment, 8th Amendment, and 14th Amendment; Acts of Conspiracy among Public Officials, Public Corruption, Conspiracy to interfere with civil rights

Under 42 USC 1985(a)(3) by retaliation and interference into ongoing Litigation in this Court, Deprivation of Civil Rights Under 42 USC 1983 by Defendants in this cause, False Imprisonment, Denial of Due Process, and Entrapment among others.

- 59) This honorable Court should grant emergency injunctive Relief, ordering the release of Plaintiff from imprisonment for the Special reasons listed, and setting a hearing at its earliest convenience so that evidence can be produced and an order of protection can be granted.
- 60) This honorable Court should grant declaratory Relief into this matter, declaring such actions by the Defendants and other named individuals to be UNCONSTITUTIONAL and ordering them to immediately Cease and Desist to prevent further irreparable harm.
- 61) This honorable Court should appoint legal counsel to assist Plaintiff in developing the issues at hand due to the serious nature of offenses listed out, and that these are indeed special extenuating circumstances which would warrant such appointment.

Wherefore All Premises Considered

Plaintiff prays upon this Court to grant emergency relief through injunction, ordering the release of Plaintiff from imprisonment that came as a result of Egregious Constitutional Rights Violations, Denial of Due Process, and Retaliation / interference into the litigation ongoing in this Court. Plaintiff asks for declaratory relief declaring such named actions as UNCONSTITUTIONAL and ordering a Cease and Desist. Plaintiff requests this Court to appoint legal counsel to assist in developing the serious issues which have occurred. Plaintiff requests this Court to declare the Banishment by Lafayette County to be UNCONSTITUTIONAL and provide injunctive relief effectively halting it. Plaintiff also requests any other relief to which he may be entitled, be it Special or General.

Signed and Sworn this 10th day of February
Under the Pains and Penalties of Perjury


Matthew Reardon
Plaintiff